

(b) Any compensation under Part I. of this Act payable by the Duke of Cornwall, or other the possessor aforesaid, shall be paid, and advances therefor made, in the manner and subject to the provisions of section eight of the Duchy of Cornwall Management Act, 1863, with respect to improvements of land mentioned in that section.

2ND SCH.
—*cont.*

26 & 27 Vict.
c. 49.

PART II.

APPLICATION TO ECCLESIASTICAL AND CHARITY LAND.

1.—(a) Where lands are assigned or secured as the endowment of a see, the powers by this Act conferred on a landlord in respect of charging land shall not be exercised by the bishop in respect of those lands, except with the previous approval in writing of the Estates Committee of the Ecclesiastical Commissioners.

(b) Where a landlord is incumbent of an ecclesiastical benefice, the powers by this Act conferred on a landlord in respect of charging land shall not be exercised by him in respect of the glebe land or other land belonging to the benefice, except with the previous approval in writing of the Ecclesiastical Commissioners.

(c) The Ecclesiastical Commissioners may, if they think fit, on behalf of an ecclesiastical corporation, out of any money in their hands, pay to the tenant the amount of compensation due to him under Part I. of this Act, and thereupon they may, instead of the corporation obtain from the minister a charge on the holding in respect thereof in favour of themselves, and every such charge shall where the landlord is the incumbent of a benefice be effectual notwithstanding any change of the incumbent.

2. The powers by this Act conferred on a landlord in respect of charging land shall not be exercised by trustees for ecclesiastical or charitable purposes, except with the approval in writing of the Charity Commissioners or the Board of Education, as the case may require.

CHAPTER 37.

An Act to regulate further the lighting of vehicles.
[22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

Obligatory
lights to be
carried by
vehicles at
night.

1.—(1) Subject to the provisions of this Act and of any regulations made thereunder by the Minister of Transport (in this Act referred to as “the Minister”), every vehicle on any road shall during the hours of darkness carry—

- (a) two lamps, each showing to the front a white light visible from a reasonable distance;
- (b) one lamp showing to the rear a red light visible from a reasonable distance;

and every such lamp shall, while the vehicle is on any road during such hours as aforesaid, be kept properly trimmed, lighted, and in efficient condition, and shall be attached to the vehicle in such position and manner as the Minister may by regulations prescribe.

It shall be the duty of any person who causes or permits a vehicle to be on any road during the hours of darkness to provide the vehicle with lamps in accordance with the requirements of this Act and of any regulations made thereunder.

(2) The Minister shall have power by regulation to exempt either wholly or partially, and subject to such conditions as may be specified in the regulation, from any of the requirements of this Act—

- (a) any vehicles or vehicles of any class or description whilst carrying inflammable or explosive goods of a nature specified in the regulation, or being in a place where inflammable or explosive material of a nature so specified is handled or stored, if an application is made for the purpose by any body which in the opinion of the Minister is a body proper to make such an application;
- (b) vehicles when standing or parked in places specially set aside for the purpose;
- (c) vehicles drawn or propelled by hand, save as hereinafter provided.

(3) The Minister shall have power by regulations to add to, or vary, the requirements of this Act, and to require or permit distinctive lamps to be carried dis-

playing lights of such colour and used under such conditions as may be prescribed, in the case of—

- (a) vehicles used as public service vehicles within the meaning of this Act or any class or description thereof or hackney carriages;
- (b) vehicles used for naval, military, air force or police purposes, or as ambulances, or for any other special purposes mentioned in the regulation or in the case of vehicles used for naval, military or air force purposes to grant exemption (whole or partial) from the requirements of this Act;

and, where distinctive lamps are so required or permitted, to prohibit similar lamps being carried by any other vehicles.

(4) In this section “ the hours of darkness ” means—

- (a) as respects the period of summer time, the time between one hour after sunset and one hour before sunrise;
- (b) as respects the remainder of the year, the time between half-an-hour after sunset and half-an-hour before sunrise.

2.—(1) No vehicle shall show a red light to the front.

(2) No vehicle shall show any light other than a red light to the rear, but this subsection shall not apply to lamps carried by vehicles for the purposes of the internal illumination thereof or of illuminating a number plate, taximeter or any device for giving signals to overtaking traffic, or, in the case of public service vehicles within the meaning of this Act for the purpose of illuminating boards, plates or devices indicating the route or destination of the vehicle.

Restriction on the number and nature of lamps to be carried.

3. The Minister may by regulations prescribe the conditions subject to which lamps, showing a light to the front, may be used, and such conditions may include conditions as to the angles at which beams of light may be projected, the height, width and the range of illumination (to be ascertained in accordance with the regulations) of such beams of light, the extent and method of obscuration to be employed, and the position on the vehicle of any lamps.

Conditions regulating the use of lamps on vehicles.

Restriction
on move-
ment of
lamps.

4. Unless otherwise provided by the Minister by regulations, no light shown by a vehicle, other than a dipping head light, shall be moved by swivelling, deflecting or otherwise while the vehicle is in motion.

Special pro-
visions as to
bicycles and
tricycles.

5.—(1) The foregoing provisions of this Act shall apply to bicycles, tricycles and invalid carriages subject to the following modifications :—

- (a) in the case of bicycles not having a sidecar attached thereto, whether propelled by mechanical power or not, and in the case of tricycles not propelled by mechanical power, and in the case of invalid carriages, only a single lamp showing a white light to the front instead of two such lamps need be carried ;
- (b) in the case of bicycles and tricycles not propelled by mechanical power, it shall not be necessary to carry a lamp showing a red light to the rear if the bicycle or tricycle has attached thereto an unobscured and efficient red reflector ;
- (c) in the case of bicycles not having a sidecar attached thereto, whether propelled by mechanical power or not, and in the case of tricycles not propelled by mechanical power, no lamp need be carried if the bicycle or tricycle is being wheeled by a person on foot as near as possible to the near or left-hand edge of the carriage-way.

Horse-
drawn
vehicles.

6. The foregoing provisions of this Act shall apply to vehicles drawn by horses or other animals, subject to the following modifications :—

- (i) A separate lamp showing a red light to the rear shall not be required to be carried if the lamps showing a light to the front required by section one of this Act to be carried show also a red light to the rear visible from a reasonable distance, and no part of the vehicle or of any load carried thereby extends more than six feet behind such lamps ;
- (ii) Vehicles engaged for the time being in carrying agricultural produce of an inflammable nature in the course of the internal operations of the farm, shall be exempted from carrying lamps ;

- (iii) In the case of an agricultural implement and in the case of any vehicle used for the time being by a person engaged in agriculture for the conveyance of his agricultural produce or articles required by him for use in agriculture, otherwise than as aforesaid;

(a) Only one lamp showing a light to the front shall be required to be carried, which lamp shall be attached to the off or right-hand side of the vehicle; and

(b) A separate lamp showing a red light to the rear shall not be required to be carried if an unobscured and efficient red reflector is carried, or if the lamp showing a light to the front shows also a red light to the rear visible from a reasonable distance and the vehicle or any load carried thereby does not extend more than six feet behind such lamp.

7. Subject to the foregoing provisions of this Act—

- (1) On any vehicle carrying a load overhanging laterally more than twelve inches from the centre of the nearest side lamp, a lamp showing to the front a white light visible from a reasonable distance shall in substitution for or in addition to such side lamp be carried on the side or each side on which the load so overhangs, and shall be so placed that no part of such load shall project outwards more than twelve inches beyond a vertical line through the centre of such substituted or additional lamp;
- (2) On any vehicle carrying a load projecting to the rear more than six feet behind any lamp showing a red light to the rear or the red reflector carried in accordance with the provisions of this Act a lamp showing to the rear a red light visible from a reasonable distance shall be carried in substitution for or in addition to such lamp or reflector so that no part of such load shall project to the rear more than six feet measured horizontally beyond such substituted or additional lamp.

Vehicles
carrying
over-
hanging or
projecting
loads.

Special provisions as to vehicles towing and being towed.

8.—(1) The foregoing provisions of this Act shall apply in the case of a vehicle drawing one or more other vehicles subject to the following modifications:—

- (a) a lamp showing a red light need not be carried by the drawing vehicle;
- (b) no lamp showing a light to the front need be carried on any vehicle being drawn;
- (c) a lamp showing a red light need not be carried on any vehicle being drawn except the rearmost vehicle:

Provided that—

- (i) if the distance between any such vehicles exceeds five feet, each vehicle shall be required to carry the same lamps as if it were not a drawing vehicle or a vehicle being drawn; and
- (ii) if a vehicle being drawn or any load carried thereon projects laterally on either side more than twelve inches beyond the outermost of the lamps showing a white light to the front on that side carried by the vehicle by which it is being drawn or by any preceding vehicle which is also being drawn by the same vehicle, a lamp showing to the front a white light visible from a reasonable distance shall be carried on the side or each side on which the vehicle or its load so projects and shall be so placed that no part of the vehicle or its load shall project outwards more than twelve inches beyond a vertical line through the centre of such lamp.

(2) For the purposes of this section, the distance between two vehicles shall be measured between the nearest points of such vehicles, so, however, that the draw-bar and the fitting for its attachment shall not be deemed to form part of either vehicle.

Regulations as to reflectors.

9. The Minister may, if he thinks fit, by regulations prescribe the conditions with which reflectors carried on vehicles in accordance with the provisions of this Act or of any regulations made thereunder must comply and the position and manner in which they are to be attached.

10. If any person causes or permits any vehicle to be on any road in contravention of any of the provisions of this Act or of regulations made thereunder, or otherwise fails to comply with any such provisions, he shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction for each such offence to a fine not exceeding five pounds, or in the case of a second or subsequent offence to a fine not exceeding twenty pounds :

Penalties.

Provided that, if a person driving or being in charge of a vehicle is charged with such an offence, he shall not be convicted thereof if he proves to the satisfaction of the court that such offence arose through the negligence or default of some other person whose duty it was to provide the vehicle with a lamp or lamps.

11.—(1) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Repeals and
rescission
of orders
and bye-
laws.

(2) The powers of any local or other authority under any Act to make orders, byelaws, or regulations with respect to the carrying of lights by vehicles on roads (other than lights carried for the purposes of internal illumination or for illuminating taximeters) shall cease and determine, and any Act or order having the force of an Act, and any regulations made under such an Act or order, and any byelaw made under the powers conferred by any Act, so far as the same relates to the carrying of lights by vehicles on roads (other than as aforesaid), and any order made under sections three or four of the Lights on Vehicles Act, 1907, shall cease to have effect, but without prejudice to the validity of anything done thereunder, or of the commencement or continuation of any proceedings in respect of any offence thereunder whilst the Act, order, regulation or byelaw was in force.

7 Edw. 7.
c. 45.

12. Any regulations made under this Act shall be laid before both Houses of Parliament forthwith, and if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulation is laid before it praying that the regulation shall be annulled, it shall thenceforth be void, but without prejudice to the validity of anything

Provisions
as to regu-
lations.

previously done thereunder or to the making of a new regulation.

Application
of fines.

13. All fines imposed in respect of offences under this Act or the regulations made thereunder shall be paid into the Road Fund in such manner and in accordance with such directions as may be ordered by His Majesty in Council.

Application.

14.—(1) This Act shall not apply to railway locomotives, carriages and trucks, or to tramcars or trolley vehicles, but save as aforesaid shall apply to vehicles of every description, and shall apply to machines and implements of any kind drawn or propelled along roads whether by animal or mechanical power as it applies to vehicles.

(2) This Act shall apply to vehicles and persons in the public service of the Crown, and in the case of any such vehicle the person whom the department in whose service the vehicle is used names as the person actually responsible shall be deemed for the purposes of this Act to be the person who causes or permits the vehicle to be on any road.

Interpreta-
tion.

15. For the purposes of this Act, unless the context otherwise requires,—

The expression “tramcar” includes any carriage used on any road by virtue of an order made under the Light Railways Act, 1896 :

59 & 60 Vict.
c. 48.

The expression “trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by power transmitted thereto from some external source :

The expression “invalid carriages” means mechanically propelled vehicles whose weight unladen does not exceed five hundredweight, and which are specially designed and constructed (and not merely adapted) for the use of persons suffering from some physical defect or disability and are used solely by such persons :

The expression “public service vehicles” means vehicles (other than tramcars or trolley vehicles) carrying passengers for hire or reward on roads :

The expression “prescribed” means prescribed by regulations :

The expression "road" means any public highway and any other road to which the public has access :

The expression "agriculture" includes the use of land as meadow or pasture land or orchard land or for market gardens or allotments but does not include the use of land as woodland, and the expression "agricultural" shall be construed accordingly.

16.—(1) This Act may be cited as the Road Transport Lighting Act, 1927.

Short title,
commence-
ment and
extent.

(2) This Act shall come into operation on the twenty-second day of April, nineteen hundred and twenty-eight.

(3) This Act shall not extend to Northern Ireland.

SCHEDULE.

Section 11.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
32 & 33 Vict. c. 115.	The Metropolitan Public Carriage Act, 1869.	In section nine the restriction numbered (3).
51 & 52 Vict. c. 41.	The Local Government Act, 1888.	Paragraph (a) of subsection (1) of section eighty-five.
52 & 53 Vict. c. 50.	The Local Government (Scotland) Act, 1889.	Paragraph (a) of subsection (1) of section fifty-eight.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Paragraph (1) of section three hundred and ninety-four.
59 & 60 Vict. c. 36.	The Locomotives on Highways Act, 1896.	The whole Act so far as it relates to lights on vehicles.
61 & 62 Vict. c. 29.	The Locomotives Act, 1898.	The whole Act so far as it relates to lights on vehicles.
3 Edw. 7. c. 33	The Burgh Police (Scotland) Act, 1903.	Section fifty.
7 Edw. 7. c. 45	The Lights on Vehicles Act, 1907.	The whole Act.
8 Edw. 7. c. 62	The Local Government (Scotland) Act, 1908.	Subsections (3) and (4) of section twenty-five.